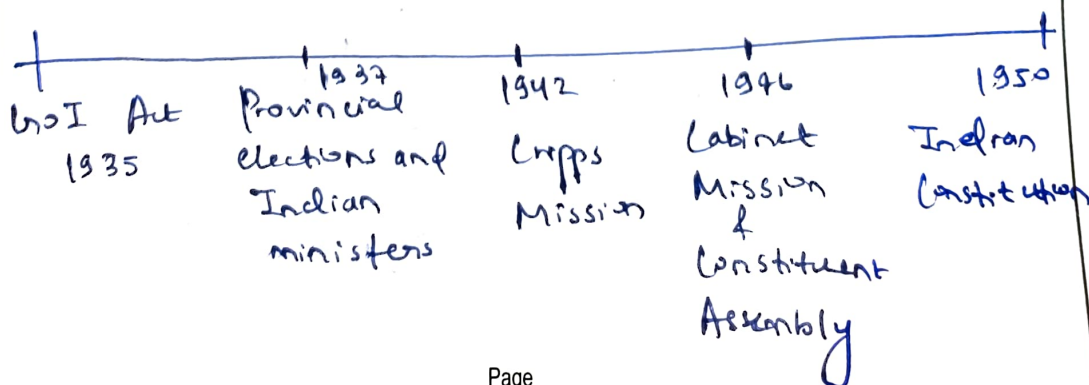


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Q- Discuss how the Government of India Act of 1935 laid the constitutional foundation of the modern Indian state. Which key features of this Act were later retained in the Indian Constitution?

Ans. The Government of India Act of 1935 became the constitutional blueprint of independent India. It introduced core principles such as federalism, provincial autonomy, public service institutions. Even though its spirit was colonial, its structure shaped India's democratic future.



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1935 Act laid the constitutional foundation of modern Indian state -

① Blueprint for federalism -

- ↳ It introduced the concept of all India federation although it was not implemented
- ↳ It divided powers between the Centre and Provinces through 3 lists - Federal, Provincial and Concurrent. This system was later retained in the Indian constitution.

② Provincial Autonomy & Responsible Govt -

- ↳ It ended dyarchy at provincial level and gave provincial autonomy
- ↳ Elected Indian members were given control over subjects, preparing Indian leaders in parliamentary practices.

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③ Bicameralism —

It introduced bicameralism at the Centre - forming the structural base for modern Parliamentary system.

④ Public Services —

↳ Established Public Service Commission to recruit civil servants based on merit.

↳ Introduced All India Services which is a key component of post-independence governance.

⑤ Emergency provisions —

↳ It empowered Governor General to assume special powers during Emergency.

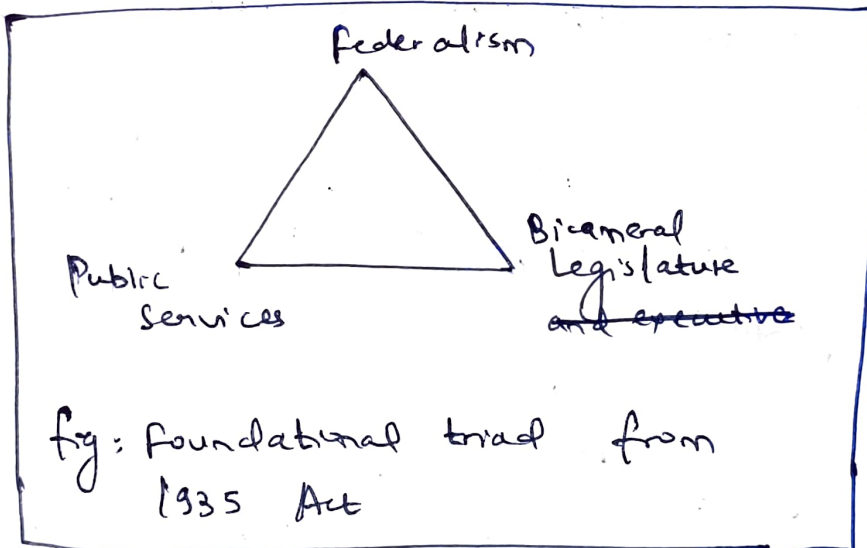
↳ These provisions were later adopted with safeguards in Articles 352 - 360 of the Constitution.

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⑥ Preparation ground for constitution making

↳ By including Indian leaders in governance the act gave them the experience of administrative management. It exposed the limitations of colonial rule and need for a democratic set up.



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Key features retained in Indian constitution —

Features

① Three lists (Federal, Provincial, Concurrent)

② Provincial Autonomy

③ Bicameral legislature at Centre

④ Federal and Provincial Public Service Commission

⑤ All India Services

⑥ Emergency provisions

Indian constitution

Seventh schedule with Union, state and Concurrent list

Elected state govt (Art 163)

Lok Sabha and Rajya Sabha

UPSC and State Public Service Commission (Art 315-323)

IAS, IPS, IFS under Art 312

Art 352, 356 and 360

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<u>Features</u>	<u>Indian Constitution</u>
⑦ Office of Governor	Governor as nominal head (Art 153)
⑧ Auditor General	CAG → Art 148

↳ The federalism in 1935 act was skewed and conditional unlike the balanced federalism adopted post 1950.

↳ The act didnot grant full and universal adult franchise and responsible government at the central level. This gap was fully addressed by our constitution.

The Govt Act of 1935 was not a democratic document but it became the skeleton on which the Indian constitution built a sovereign and democratic republic. The Indian constitution didnot merely copy

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the Act of 1935 but transformed
its structure into a document of
democratic self-rule.